

ENCLOSURE B: Reply Form

To the open letter of October 10, 2026 to the candidates for Minnesota Attorney General.

Candidate: _____ **Campaign:** _____

Please return this page by **October 21, 2026** in the enclosed stamped envelope, or send the same answers by email to joseph@kirchner.ink. Each question can be answered yes or no; the lines under each are for any explanation you wish to add. Your answers, or the absence of them, will be published with the letter on October 21, 2026.

1. Will the office, under you, recognize its authority under Minn. Stat. § 8.31, subd. 1 to investigate a citizen's referral of unlawful business practices, including consumer fraud, on its own, without a request from a county attorney or the Governor, the duty Mr. Ellison stated on October 2?

☐ Yes ☐ No

2. Will the office, under you, recognize that its authority to investigate criminal matters, and to cause and conduct their prosecution, is not limited to Medicaid fraud: that it rests on Minn. Stat. § 8.31, subd. 2, on the office's own information, and on § 8.01, with the request pathways that section names, and that the Legislature recognized it again in 2025 in § 299C.061, subd. 4(c); and will the office withdraw the statement, in the letter and on the website, that the Legislature did not delegate such authority to this Office?

☐ Yes ☐ No

3. Will the office, under you, answer a citizen's documented referral of unlawful practices that reach across county lines, or otherwise lie beyond a single county attorney's reach, with a decision on its merits, or with a declination in the exercise of whatever discretion the law gives, rather than with a statement that it lacks the authority?

☐ Yes ☐ No

Signed: _____ **Date:** _____

Printed name: _____ **Title:** _____